

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: September 10, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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102	Garcia vs. S&A Management, LLC, 24-01376331	Defendant/Cross-Complainant S&A Management, LLC's unopposed motion for leave to file an amended cross-complaint is GRANTED. (Code of Civ. Proc. § 426.50.) S&A Management, LLC to file the First Amended Cross-Complaint within 10 days of this ruling. <i>Moving Party is to give notice.</i>
103	Tayebi vs. L.A. Law, Inc., 22-01291650	Plaintiff Nahid Taybebi ("Plaintiff") moves to strike Defendant Fari Bari Nejadpour's ("Defendant") Memorandum of Costs as untimely. Alternatively, Plaintiff moves to strike: (1) Item 15, "Other" in the sum of \$685.26,

	(2) Item 1. Filing and motion fees in the sum of \$1235.00, (3) Item 13. Models, enlargements, and photocopies of exhibits in the sum of \$842.38, and (4) Item 14. Fees for electronic filing and service in the sum of \$1956.74. Defendant Fari Bari Nejadpour (“Defendant”), proceeding in pro per, opposes the motion. California Rules of Court, rule 3.1700(a)(1) expressly states: “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a)(1).) “The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory.” (<i>Sanabria v. Embrey</i> (2001) 92 Cal.App.4th 422, 426 [citing <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924, 929].) Defendant provides no authority pursuant to which the Court should excuse Defendant’s untimeliness in filing his Memorandum of Costs. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793.) Additionally, parties “may not enlist the court as their legal assistant to develop arguments they merely suggest.” (<i>Paglia & Associates Construction, Inc. v. Hamilton</i> (2023) 98 Cal.App.5th 318, 327.) “It would be unfair for one side to loft an undeveloped legal idea, to rely on the court to work it out, and to leave the opposing party with nothing concrete to tackle in the briefing.” (<i>Ibid.</i> [citing <i>Hewlett-Packard Co. v. Oracle Corp.</i> (2021) 65 Cal.App.5th 506, 565 (failing to develop a reasoned argument supported by authority
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		improperly forces the court to decode a bare assertion that the judgment, or part of it, is erroneous)].) Here, the Court signed and entered judgment on 05/22/2026. (ROA 351.) Plaintiff served a written notice of entry of the judgment on 05/29/2026. (ROA 357.) 15 days after 05/29/2026 is Saturday, 06/13/2026. Defendant, however, did not file and serve the Memorandum of Costs until 07/13/2026. (ROA 359.) As such, the Memorandum of Costs is untimely and STRICKEN. The Motion is GRANTED. Defendant's objections to the declaration of John Gulino are OVERRULED. <i>Plaintiff to give notice.</i>
104	Vicente vs. San Remo Villas Homeowners Association, 25-01531185	Plaintiff, Christina Vicente ("Plaintiff"), demurs to the Answer to Complaint filed by Defendant, San Remo Villas Homeowners Association (the "HOA"), on the grounds that HOA's affirmative defenses numbered 3-21 do not state facts sufficient to constitute a defense and are uncertain under Code of Civil Procedure section 430.20(a) and (b). Plaintiff contends that the HOA's Answer contains irrelevant boilerplate defenses devoid of any facts defying California law, and that there are no facts included anywhere for the third through twenty-first affirmative defenses, such that the demurrer must be sustained in its entirety, without leave to amend, should the HOA be unable to meet its burden to establish that it can adequately plead each of the listed affirmative defenses supported by well-pled facts. The HOA contends that the Answer pleads ultimate facts to support the identified affirmative defenses set forth in the Answer to put Plaintiff on notice of the basis for them, that the HOA need not prove the affirmative defenses at the time the Answer is filed, and that if the court is inclined to sustain the demurrer, it should be with leave to amend. There are three grounds for a demurrer to an answer: (a) the answer fails to state sufficient facts to constitute a defense; (b) the answer is uncertain (including ambiguous and unintelligible); and (c) if the answer pleads a contract, it cannot be ascertained from the answer whether the

		contract is written or oral. (Code Civ. Proc. § 430.20; <i>Timberidge Enterprises, Inc. v. City of Santa Rosa</i> (1978) 86 Cal.App.3d 873, 880.) A general demurrer to an answer admits all facts well pleaded in the answer, including denials. (<i>Warren v. Harootunian</i> (1961) 189 Cal.App.2d 546, 548.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal App.4th 612, 616.) An answer may include a general denial, specific denial or new matter constituting a defense. (Code Civ. Proc. §431.30(b).) A general denial in an answer puts in issue the material allegations of the complaint, including all essential elements of the claims. (<i>Advantac Group, Inc. v. Edwin’s Plumbing Co., Inc.</i> (2007) 153 Cal.App.4th 621, 627.) “New matter” is something relied on by a defendant which is not put in issue by the plaintiff, and including any issue on which defendant bears the burden of proof which must be specially pleaded in the answer. (<i>Harris v. City of Santa Monica</i> (2013) 56 Cal.4th 203, 239; <i>Quantification Settlement Agreement Cases</i> (2011) 201 Cal.App.4th 758, 812-813) “Affirmative defenses must not be pled as “terse legal conclusions,” but “rather ... as facts ‘averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.’” (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384; <i>see also Westly v. Calif. Public Employees’ Retirement System Bd. of Administration</i> (2003) 105 Cal.App.4th 1095, 1118 [finding affirmative defenses of waiver and laches consisted of legal conclusions that could not survive a demurrer].) “An affirmative defense must be pleaded in the same manner as if the facts were set forth in a complaint. In other words, the general requirement of stating the ultimate facts applies and, where particularity in pleading is necessary in a complaint, it is equally necessary in an affirmative defense involving the issue. (<i>Bruck v. Tucker</i> (1871) 42 C. 346, 352; <i>Greiss v. State Inv. & Ins. Co.</i> (1893) 98 C. 241, 244, 33 P. 195; <i>Bradbury v. Higginson</i> (1914) 167 C. 553, 557, 140 P. 254 [if matter set up is equitable cause of action, answer must contain all averments essential to statement of cause of action as
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such].)” (5 Witkin, *Cal. Proc.* (6th ed. 2024) Method of Pleading, § 1122.) “ ‘ “In order to plead a cause of action, the complaint must contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language.’ [Citation.] While it is true that pleading conclusions of law does not fulfill this requirement, it has long been recognized that ‘[t]he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. [Citations.] For example, the courts have permitted allegations which obviously included conclusions of law and have termed them “ultimate facts” or “conclusions of fact.” ’ [Citations.] What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” ’ [Citation.]” (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 452.)

“An important difference is that in the case of a demurer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein and eliminates all allegations of the complaint denied by the answer.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733, internal quotation marks omitted.) Waiver and estoppel are affirmative defenses which ordinarily must be pleaded specially unless it appears on the face of the complaint. (*Calif. Academy of Sciences v. County of Fresno* (1987) 192 Cal.App.3d 1436, 1442 [waiver and estoppel]; *Roam v. Koop* (1974) 41 Cal.App.3d 1035, 1044 [estoppel].)

“[L]iberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. [Citations.]” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Upon examination of the Answer and Complaint, the Court finds as follows.

The HOA’s third affirmative defense of waiver and ninth affirmative defense of estoppel are not pleaded specially,

		and do not appear on the face of the Complaint. The Court SUSTAINS, with 20 days' leave to amend, the demurrer to the third and ninth causes of action. The HOA's fourth affirmative defense of failure to mitigate, fifth affirmative defense of failure to comply with a condition precedent, sixth affirmative defense of excuse, seventh affirmative defense of unclean hands, eighth affirmative defense of performance and satisfaction, tenth affirmative defense of good faith, eleventh affirmative defense of "Want of Ordinary Care on Behalf of Tenant," thirteenth affirmative defense of substantial compliance, sixteenth affirmative defense of comparative fault of Plaintiff, seventeenth affirmative defense of comparative fault of others, and eighteenth affirmative defense of assumption of the risk are pled as "terse legal conclusions" and fail to state facts sufficient to constitute each affirmative defense asserted above which renders the each of these affirmative defenses uncertain. The Answer and Complaint do not contain sufficient facts to apprise Plaintiff of the basis upon which the HOA is asserting these affirmative defenses. The Court SUSTAINS, with 20 days' leave to amend, the demurrer to the fourth, fifth, sixth, seventh, eighth, tenth, eleventh, thirteenth, sixteenth, seventeenth, and eighteenth affirmative defenses. The HOA's fourteenth affirmative defense of "Legitimate Business Interest," fifteenth affirmative defense of "Notice," nineteenth affirmative defense of laches, twentieth affirmative defense of economic loss rule, and twenty-first affirmative defense of due care allege sufficient facts to constitute each affirmative defense. The Court OVERRULES the demurrer to the fourteenth, fifteenth, nineteenth, twentieth, and twenty-first affirmative defenses. The HOA's twelfth affirmative defense of request for attorneys' fees appears to be a claim for affirmative relief as the HOA asserts that it is "entitled to their attorney's fees in defending this action pursuant to Civil Code § 1717." "Affirmative relief may not be claimed in the answer." (Code Civ. Proc. § 431.30(c).) The Court SUSTAINS, without leave to amend, the demurrer to the twelfth affirmative defense. The Case Management Conference is continued to 12/10/2026 at 1:30 p.m.
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		<i>Plaintiff to give notice.</i>
105	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<i>Off-calendar.</i>
106	Orange Tint, Inc. vs. Lim, 23-01367250	<u>Demurrer to Second Amended Complaint</u> Defendants Andrew Byung Hoon Lim and Optima Window Film demur to Plaintiff Orange Tint, Inc.'s Second Amended Complaint ("SAC") and the causes of action alleged therein. <i>First Cause of Action for Trade Secret Misappropriation</i> Under the California Uniform Trade Secrets Act ("CUTSA"), trade secret misappropriation means improper acquisition, or non-consensual disclosure or use of another's trade secret. (Civ. Code, § 3426.1, subd. (b).) " 'Trade secret' means information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." (Civ. Code, § 3426.1, subd. (d).) "With respect to the general availability of customer information, courts are reluctant to protect customer lists to the extent they embody information which is 'readily ascertainable' through public sources, such as business directories. (<i>American Paper & Packaging Products, Inc. v. Kirgan</i> (1986) 183 Cal.App.3d 1318, 1326, 228 Cal.Rptr. 713.)" (<i>Morlife, Inc. v. Perry</i> (1997) 56 Cal.App.4th 1514, 1521.) However, courts will prohibit former employees from using information where the employer has expended time and effort to identify customers with particular needs or characteristics. (<i>Morlife, supra</i>, 56 Cal.App.4th at p. 1521.) "As a general principle, the more difficult information is to obtain, and the more time and resources expended by an employer in gathering it, the more likely a court will find such information constitutes a trade secret. [Citation.]" (<i>Id.</i> at pp. 1521-1522.) A customer list qualifies as a trade secret if it provides a "substantial business

advantage” by identifying proven buyers rather than cold leads, thus allowing competitors to target sales efforts more selectively and effectively. (*Id.* at pp. 1522.)

The SAC alleges Plaintiff cultivated customer goodwill and satisfaction through Plaintiff’s goods and delivery. (SAC ¶¶ 17-19, 21-25, 32-33.) Plaintiff owned trade secret information, including a customer list that was assembled over many years and built on Plaintiff’s information and goodwill with each customer. (*Id.* at ¶¶ 54, 58.) The information was kept secret, known only to Plaintiff and necessary personnel for Plaintiff. (*Id.*) The trade secret information had been granted to Defendant Lim to sell products for Plaintiff, but Defendant Lim used the information to steal Plaintiff’s customers after leaving Plaintiff’s employment. (*Id.* at 49.)

These allegations are insufficient to plead a protectable customer list. The SAC does not allege any details as to the what the customer lists contain, how they derive economic value from remaining secret, or that the lists included any details that were the result of Plaintiff’s labor or investment. The demurrer to the first cause of action is SUSTAINED with leave to amend.

Second Cause of Action for Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. [Citation.]” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

The SAC alleges that on or about February 14, 2023, Plaintiff orally agreed to loan Defendant Lim \$10,000 to be repaid within six months. (SAC ¶ 69.) Plaintiff fully performed all obligations of the oral agreement. (*Id.* at ¶¶ 70-71, 75-76, Exh. B.) Defendant Lim breached the agreement by failing to repay the \$10,000 loaned to him by Plaintiff. (*Id.* at ¶¶ 72-74, 77-78.)

The allegations are insufficient to allege a contract between Plaintiff and Defendant Lim. “The essential elements of a contract are: ‘1. Parties capable of contracting; [¶] 2. Their consent; [¶] 3. A lawful object; and, [¶] 4. A sufficient cause or consideration.’ (Civ. Code, §

1550.) ‘ “[T]he vital elements of a cause of action based on contract are mutual assent (usually accomplished through the medium of an offer and acceptance) and consideration.” ’ (*Pacific Bay Recovery, supra*, 12 Cal.App.5th at p. 215, 218 Cal.Rptr.3d 562.)” (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1231.) The SAC fails to adequately plead mutual assent. Additionally, the SAC does not include any words of promise or other consideration by Defendant Lim. (*Stevenson v. San Francisco Housing Authority* (1994) 24 Cal.App.4th 269, 284 [“ ‘The statutory presumption of consideration ... does not, of course, apply to an oral contract. In an action on such an agreement, the essential element of consideration must normally be alleged. [Citations.]’ ”].) The demurrer to the second cause of action is SUSTAINED with leave to amend.

Uncertainty

Demurrers for uncertainty are generally disfavored (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822) because “under [California’s] liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) The court will only sustain a demurrer for uncertainty if it is so poorly drafted that defendants cannot reasonably respond. (*Khoury v. Maly’s of California Inc.* (1993) 14 Cal. App. 4th 612, 616.) A demurrer for uncertainty must identify by line and page number, the language that creates the uncertainty. (*Fenton v. Groveland Community Services Dist.* (1982) 135 Cal. App. 3d 797, 809.)

The SAC is not “so incomprehensible that a defendant cannot reasonably respond.” (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal. App. 4th 1125, 1135.) Any “ambiguities can be clarified under modern discovery procedures.” (*Khoury, supra*, 14 Cal. App. 4th at p. 616.) The demurrer on the basis of uncertainty is overruled.

Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 20 days of service of notice of ruling.

		The Case Management Conference and the Status Conference re corporate representation of plaintiff are continued to January 28, 2027 at 1:30 p.m. <i>Defendants to give notice.</i>
107	Keating vs. General Motors, LLC, 25-01469536	Defendant General Motors LLC (“GM” or “Defendant”) will and hereby does move for judgment on the pleadings as to all five causes of action asserted in the Complaint filed by Thomas Keating (“Plaintiff”). GM requests all five causes of action be dismissed without leave to amend, and that judgment on those causes of action be entered in favor of Defendant GM. Initially, all papers opposing a motion “shall be filed with the court and a copy served on each party at least nine court days” before the hearing. (Code Civ. Proc. § 1005(b).) The failure to oppose a demurrer may be construed as having abandoned the claims. (<i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Here, no opposition to the Motion for Judgment on the Pleadings has been filed; and therefore, the Court deems the motion unopposed and construes the failure to oppose the Motion as an abandonment of Plaintiff’s claims. Therefore, the unopposed Motion for Judgment on the Pleadings is GRANTED in its entirety with 20 days leave to amend.

		<i>Defendant to give notice.</i>
108	Doe vs. 1, 25-01495743	Defendant Nancy Williams (“Defendant”) demurs to the First Amended Complaint on the grounds that (1) the causes of action are time barred pursuant to section 340.1 and Plaintiff fails to allege sufficient facts to invoke the delayed discovery rule and (2) the causes of action are uncertain and vague. Plaintiff John Wa Doe (“Plaintiff”) opposes the motion. I. THE COMPLAINT IS NOT BARRED BY THE STATUTE OF LIMITATIONS Defendant’s first argument is that Plaintiff’s complaint is barred by the statute of limitations set forth in Code of Civil Procedure section 340.1. Section 340.1 governs childhood sexual assault cases. When the childhood sexual assault at issue “occurred on and after January 1, 2024,” then there “is no time limit for the commencement of” the actions listed in section 340.1 for recovery of damages suffered as a result of childhood sexual assault.” (Code Civ. Proc., § 340.1, subds. (a) and (p).) Code of Civil Procedure section 340.11 states: “(a)(1) Notwithstanding Section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later, for any of the following actions: “(A) An action against any person for committing an act of childhood sexual assault. “(B) An action for liability against any person or entity who owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff.

		“(C) An action for liability against any person or entity if an intentional act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff. “(2) Notwithstanding paragraph (1) or Section 340.1, in an action for recovery of damages suffered as a result of childhood sexual assault that occurred before January 1, 2024, involving an act that would have been proscribed by Sections 311.1 or 311.2 of the Penal Code, the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority or within 10 years of the date the plaintiff discovers or reasonably should have discovered, after the age of majority, the existence of obscene matter, for any of the actions identified in subparagraphs (A) to (C), inclusive, of paragraph (1).” (Code Civ. Proc., § 340.11, subd. (a).) Here, Plaintiff argues that the statute of limitations does not bar Plaintiff’s claims because Plaintiff commenced this action “within five years of the date the plaintiff discovers or reasonably should have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault.” Specifically, Plaintiffs alleges: “Within the past five years, PLAINTIFF has discovered that the psychological injury after reaching the age of majority was caused by the decades-long sexual assaults and abuse perpetrated upon him as a child by Defendant NANCY WILLIAMS. Specifically, in July 2023, after attending a presentation focused on childhood sexual abuse and grooming behavior at Capstone Recovery Center in Searcy, Arkansas, PLAINTIFF, for the very first time, realized and discovered that he was a victim of sexual abuse. Immediately following this presentation, PLAINTIFF for the very first time, disclosed the sexual abuse to his therapist and came to the realization that the psychological injuries he had suffered, and continues to suffer, were caused by the repeated instances of sexual abuse and sexual grooming employed by his own biological mother, Defendant NANCY WILLIAMS, throughout his childhood. As a result of Defendant NANCY WILLIAMS’s acts, PLAINTIFF had developed feelings of deep-rooted shame and self-blame in the years following the abuse and well into his adult life. He self-medicated
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with alcohol and drugs, became an angry and alienated person, and even attempted to take his own life. PLAINTIFF further alleges that as a result of Defendant NANCY WILLIAMS's actions and abuse, PLAINTIFF came to rely on psychological defenses such as denial and dissociation, which reasonably and justifiably prevented PLAINTIFF from being able to discover that the psychological injuries occurring in his adult life were connected to the sexual abuse he suffered as a child, and from being able to discover the wrongfulness of Defendant NANCY WILLIAMS's conduct, until on or after approximately July 2023 when PLAINTIFF attended the presentation at the Capstone Recovery Center, where for the first time he was educated on the topics of childhood sexual abuse and grooming behavior and later made those revelations during therapy with his therapist. As a result, PLAINTIFF's claims are timely." (FAC, ¶ 11.)

Defendant argues that Plaintiff has not sufficiently established that his delayed discovery permits their case to proceed. Defendant relies on *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808–809, which states:

"Simply put, in order to employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Ibid.*)

Importantly, however section 340.11 does not require a showing of diligence or reasonableness in delayed discovery. Section 340.11 expressly states that "the time for commencement of the action shall be within 22 years of the date the plaintiff attains the age of majority *or within five years of the date the plaintiff discovers or reasonably should have discovered* that psychological injury or illness

occurring after the age of majority was caused by the sexual assault.” (*Ibid.*, emphasis added.) There is no express requirement that Plaintiff be diligent or reasonable in discovering the that his injury was caused by the sexual assault. Rather, the statute expressly states that the statute of limitations begins upon discovery.

As discussed in *Quarry v. Doe I* (2012) 53 Cal.4th 945, the California Supreme Court does “not believe the Legislature intended that common law delayed discovery principles should apply to cases governed by section 340.1.” (*Quarry v. Doe I* (2012) 53 Cal.4th 945, 984.)

Given the discussion in *Quarry v. Doe I* (2012) 53 Cal.4th 945 along with the express language in section 340.11 that states that the statute of limitations begins to accrue upon discovery (with no mandatory qualifications as to the reasonableness or diligence surrounding the discovery), the Court finds that the causes of action at issue are not barred by the statute of limitations as discussed in the demurrer based on the allegations in the FAC.

The Court agrees that sections 340.1 and 340.11 only apply to “any act committed against the plaintiff that occurred when the plaintiff was under the age of 18 years.” (Code Civ. Proc., § 340.11, subd. (f).) Still, Plaintiff sufficiently alleges sexual abuse that occurred before he reached the age of majority and therefore the causes of action alleged survive the demurrer.

As such, the Demurrer is OVERRULED as to the statute of limitations argument.

II. THE ALLEGATIONS ARE NOT UNCERTAIN AND VAGUE

Next, Defendant generally argues that the allegations in the FAC are uncertain and vague. Defendant does not state which elements of the causes of action alleged are missing or require additional information.

Defendant argues:

“While the FAC adds some additional facts, it remains fatally vague and ambiguous as to the specific conduct alleged. The FAC now provides locations for the alleged

abuse and ballpark figures quantifying the occasions of abuse. (FAC ¶¶ 15, 16.) However, the FAC remains bereft of concrete, factual details and so fails to apprise Defendant of the basic who, what, and when of the alleged misconduct, including the nature of the purported acts of abuse, their dates, or the frequency with which they allegedly occurred. The FAC merely states that “these acts are alleged to have occurred within the Laguna Niguel family home on a regular and consistent basis on over fifty different occasions” and “rapes occurred by both force and duress regularly at the Laguna Niguel, California home, and on one occasion at the San Ynez, California ranch property.” (Id.) These allegations, while supplying the “where”, fail to cure the vagueness of the specific conduct.”

“A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292.)

“[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292.) “However, ‘ “[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.”’ (*Ibid.*)

“No error or defect in a pleading is to be regarded unless it affects substantial rights.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (*Ibid.*)

Here, the FAC gives Defendant sufficient notice of the issues to enable her to prepare a defense. For example, Plaintiff alleges:

		“NANCY WILLIAMS began sexually grooming and molesting” Plaintiff at the age of six. (FAC, ¶ 15.) “Over the next seven years, from approximately 1987 to 1994, NANCY WILLIAMS would regularly and routinely sexually abuse PLAINTIFF under the guise of “teaching” him lessons in sex and sexual gratification, exhibiting reprehensible behavior, including but not limited to: forcing PLAINTIFF to sleep in NANCY WILLIAMS’s bed with her; groping PLAINTIFF’s body; asking to touch PLAINTIFF’s bare penis; orally copulating PLAINTIFF’s penis; teaching PLAINTIFF about and encouraging acts of masturbation, including how to ensure DEFENDANT achieved climax; and pressuring and encouraging PLAINTIFF to put his mouth on NANCY WILLIAMS’s breasts to “nurse” despite PLAINTIFF being well beyond the appropriate age for breastfeeding.” (FAC, ¶ 15.) The Demurrer is OVERRULED as to Defendants argument that the allegations are uncertain and vague. In sum, the Demurrer is OVERRULED in its entirety. Defendant shall file an answer within 20 days after receiving notice of this ruling. The Case Management Conference is continued to November 19, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
109	Aguirre vs. Davita, Inc, 24-01394742	<i>Off-calendar.</i>
110	Tran vs. Dang, 24-01417792	<i>Off-calendar.</i>
111	NAJARRO-MYTINGER vs. VOLKSWAGEN GROUP OF AMERICA, INC., 24-01434972	Defendant McKenna Volkswagen Huntington Beach moves for judgment on the pleadings as to the third cause of action for negligent repair in Plaintiff’s complaint. In opposition, Plaintiff contends that the motion is moot because, according to Plaintiff, “McKenna Volkswagen Huntington Beach” is either the fictitious business name of McKenna Motors Huntington Beach, Inc. (an entity that

		was already dismissed from this case) or a phrase that does not identify any legal entity. (See ROA 125.) Notwithstanding Plaintiffs' contentions, an Answer was filed on 1/6/25 by "Defendant McKenna Volkswagen Huntington Beach," and that Answer has not been stricken. (ROA 20; see also ROA 125 "In any event, the Answer filed by McKenna Volkswagen Huntington Beach remains and that entity is still in the case.".) Accordingly, the Court does not find the motion moot. Defendant contends that the allegations of the third cause of action for negligent repair do not state a cause of action and, additionally, the claim is barred by the economic loss rule. Plaintiffs have offered no argument in opposition to Defendant's position. Failure to challenge a contention in a brief results in the concession of that argument. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 ("By failing to argue the contrary, plaintiffs concede this issue").) Accordingly, the motion is GRANTED with 20 days leave to amend. <i>Defendant to give notice.</i>
113	TBF Financial I, LLC vs. O'Connell, 24-01383167	Tentative Ruling is available as reflected in the 8/27/2026 minute order. The Case Management Conference will take place on 9/10/2026 at 1:30 p.m.